

The Aligarh Development Authority (Form of Application For Permission For Development) Bye-Laws, 1983

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State of Uttar Pradesh - Act

The Aligarh Development Authority (Form of Application For Permission For Development) Bye-Laws, 1983

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The Aligarh Development Authority (Form of Application For Permission For Development) Bye-Laws, 1983

Rule

THE-ALIGARH-DEVELOPMENT-AUTHORITY-FORM-OF-APPLICATION-FOR-PERMISSION-FOR-DEVELOPMENT-BYE-LAWS-1983 of 1983

Published on 3 April 1984

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The Aligarh Development Authority (Form of Application For Permission For Development) Bye-Laws, 1983

[Vide Notification No. 152I/XXXVII-2-158-DA.-80, dated March 31; 1984, published in U.P. Gazette, 'Extra' dated 3rd April, 1984, pp.4-7].

031.

In pursuance of the provisions under clause (a) of Section 57 of the Uttar Pradesh Urban Planning and Development Act, 1973 (President's Act

No. 11 of 1973

) as re-enacted with modifications by the Uttar Pradesh President's Acts (Re-enactment with Modifications) Act, 1974 (U.P. Act No.30 of 1974), the Aligarh Development Authority, after the previous approval of the State Government, makes the following Bye-Laws prescribing the form of application for permission for development under sub-section (1) of Section 15 of the Act:

1.

Short title and commencement -

(1)

These Bye-laws may be called the Aligarh Development Authority (Form of Application for Permission for Development) Bye-Laws, 1983;

(2)

They shall come into force with effect from the date of publication in the Gazette; and

(3)

They shall be applicable to the Aligarh Development Area.

2.

Definitions.

- In these Bye-laws, unless the context otherwise requires -

(a)

"Open Space" means an area, forming an integral part of the plot left open to the sky and includes any land left open and unbuilt or laid out and developed as a garden or park or which is being used for any other purpose;

(b)

"Person" means any individual, society, colonizer, a company or Government department other than the Defence department of the Government of India.

3.

Application for permission.

- Application for permission under Section 15 shall be in Form 'A' and shall be accompanied by a receipt showing that the prescribed fee has been deposited.

4.

Plans to accompany application for permission.

- The application for permission shall be accompanied with the following plans:

(1)

A site plan of the proposed development drawn on a scale of not less than 1:1000 for plots upto 10 hectares and not less than 1:100 for plots above 10 hectares and 1:500 for sub-division of land; which shall include the following information -

(i)

the boundaries of the site inter-dimensions and also of any contiguous land belonging to the owner, specifying Khasra number or other local denominations where available;

(ii)

the position of the proposed building on the site and of other buildings, if any, which the applicant intends to erect upon his contiguous land and where the land is sub-divided, the boundaries of the other portions of the land so sub-divided, and all adjacent streets, buildings and premises within a distance of 40 metres of the site or the contiguous land;

(iii)

the means of access from the existing street to the proposed buildings;

(iv)

the set-back of the building all around;

(v)

the location of the area within the Master Plan;

(vi)

the position of all existing structures, Kachha or Pucca including religious buildings, aerial lines, telegraph and electric poles, trees, etc. within a distance of 15 metres from the boundary of the , site;

(vii)

the present and proposed use of the land or site;

(viii)

major physical characteristics of the land proposed to be developed, the approximate locations and width of any arterial road, water course etc.

(ix)

scale and north point; and

(x)

plinth level and levels of adjacent roads in lay-out plans.

(2)

Detailed Lay-out Plan, on the same scale as the site-plan, showing location and width of all streets and roads and dimensions and uses of all plots in which the site is proposed to be divided and also showing -

(a)

location of drains, sewers, public utility services, electric lines and sewage;

(b)

area set apart from roads, open spaces, play-grounds, schools or other public buildings; and

(c)

in distinctive notations, all uses to which land is to be put.

(3)

Detailed Plan showing -

(a)

building elevation and sections, with distinct indication of proposed and existing works;

(b)

arrangements for proper drainage including - .

(i)

floor plans of all floors, together with the covered area, accessory buildings and basement plans and terrace plans (such drawings shall clearly indicate the sizes and spacing of supporting members, sizes of rooms, etc.);

(ii)

location of essential service, e.g. water- closet, sink, bath and the like;

(iii)

sectional drawings showing clearly the sizes of footings, thickness of basement walls and all roofs, slab, wall-construction sizes and spacing of frame members, ceiling heights and parapet heights with their materials. The section shall indicate the drainage and the slope of the roof and at least one section shall be taken through the stair-case;

(iv)

all street elevations;

(v)

dimensions of the projected portions beyond the permissible building line;

(c)

Name and address of the owner/owners of the land or site;

(d)

Name of the Architect/Town Planning Engineer/Surveyor/ Draughtsman responsible for the execution of the project with his registration number in the Authority;

(e)

North line and scale used;

(4)

The plans may be ordinary ferro, ammonia, or Diaze prints of which one set will be mounted on cloth. The mounted set shall be maintained in the Office of the Development Authority.

(5)

The plans shall be signed by the applicant as well as, by the Architect/Town Planning Engineer/Surveyor/Draughtsman "with his full name, registration number in the Authority and his seal.

5.

Statement to accompany application for permission.

- The application for permission in the case of detailed layout plans shall be accompanied by the following statements -

- (a) a statement containing general specifications of all improvements proposed to be made within the area, e.g. grading and paving of roads and streets, provision of gutters, side-drains, water-supply and arrangement of sewage disposal and lighting and development of parks and playfields;
- (b) the purpose for which land or structure is to be used and written analysis of allocation of land for different purposes;
- (c) detailed specifications, material to be used and estimated cost of the development of the area;
- (d) quality and quantity of effluent in respect of industrial concern;
- (e) title of ownership of the land if the permission is required for development;
- (f) any other statement required by the Development Authority.

6.

Presentation of application.

- The application with plans and statements shall be presented to the Vice-Chairman of the Development Authority or an officer authorised by him in this behalf.

7.

Land adjoining Government property.

- In case of an application pertaining to the land within 30 metres of the property or road maintained by the Public Works Department, Irrigation or any other Government Department or belonging to Railway Administration or Military, it should be in duplicate and the plans in quadruplicate one set for the use of the Authority and the other for the use of the officer-in-charge of the department concerned for report before the permission is granted.

Form 'A'

(See Bye-Law 3)

Application for Permission for Development

To,

The Vice-Chairman,

Aligarh Development Authority.

Aligarh

Sir,

I/We beg to apply for permission for development in accordance with the plans and statements enclosed herewith as required by the Aligarh Development Authority (Form of Application for Permission for Development) Bye-laws, 1982 and also state the requisite details as hereunder -

- 1. Name of the applicant(s).....
- 2. Address.....
- 3. Description of the land intended to be developed.....
- 4. Description of the boundaries of the said land.....
- 5. Details of the Plans and statements enclosed :

(a)

Plans (in triplicate/quadruplicate).....

(b)

Statements.....

(c)

Certificate of Architect/Town Planning Engineer/Surveyor/ Draughtsman.

(d)

Other documents required by the Bye-laws.

I/We, therefore, request you kindly to grant the permission applied for.

Signature of the Architect/

Signature of Applicant.

Town Planning Engineer/Surveyor/Draughtsman.

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